

26CV02219 Suzan Kirkland vs Alta Orthopaedic Medical Group Inc

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-21

Motion: Motion: Stay

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Tentative Ruling: Suzan Kirkland vs Alta Orthopaedic Medical Group Inc

Case Number

26CV02219

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Motion: Stay

Tentative Ruling

For all reasons discussed herein, defendant's motion to stay proceedings pending consolidation is granted as follows: The proceedings in this action are stayed until October 16, 2026.

Background:

This action commenced on April 7, 2026, by the filing of the class action complaint by plaintiff Suzan Kirkland against defendant Alta Orthopaedic Medical Group, Inc.

The complaint arises from allegations that a cybercriminal group, Inc. Ransom, breached defendant's computer system in March 2026, and obtained a vast amount of personally identifying information and protected health information regarding past and current patients of defendant. Kirkland alleges that defendant breached a duty to implement and keep in place

adequate data security measures and practices to protect against unauthorized access and disclosure of sensitive information.

On June 30, 2026, this case was ordered related to Case Nos. 26CV01663, 26CV01857, 26CV01875, 26CV01903, 26CV01755, 26CV02023, and 26CV02048.

In Case No. 26CV01663, Martin Garcia, Jr. moved to consolidate all of the actions. On August 14, 2026, the motion to consolidate was continued to October 16, 2026, due to failure to comply with the California Rules of Court. Specifically, Garcia failed to file the motion for consolidation in each of the related cases and failed to file a code-compliant proof of service.

Plaintiffs' counsel for all of the related actions have stipulated to stay proceedings pending determination of the motion for consolidation and stipulations have been filed or will be filed. (Cole decl., ¶ 8.)

Kirkland now moves for an order staying proceedings in this action pending the ruling on the motion for consolidation.

On June 25, 2026, the parties to this action filed a stipulation and order to stay proceedings pending consolidation. The court declined to sign the order because it lacked information. The order simply purported to stay this action in its entirety, with no end date.

This order will supplant the insufficient stipulation and order.

Analysis:

"As the court in *Landis v. North American Co.* (1936) 299 U.S. 248, 254, explained, 'the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.' " (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141; accord, *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].)" (St. Paul Fire and Marine Insurance Company v. AmerisourceBergen Corporation (2022) 80 Cal.App.5th 1, 13-14.)

The court agrees with defendant that if Alta Orthopaedic complies with the California Rules of Court, and the court consolidates the related actions, it would promote judicial efficiency. This case, as with the related cases, is in the very early stages of litigation and no party will risk prejudice by the granting of this motion.

As the motion for consolidation in Case No. 26CV01663 is set for hearing on October 16, 2026, and the court does not know if the moving plaintiffs will comply with the California Rules of Court, or if it will deny the motion for other reasons, the court will order the proceedings stayed until that date.

Judges

Judge Donna D. Geck

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